

Opinion of the Court

fraud and about choosing the leadership” of the Department; (3) “communicated with state officials about the administration of the federal election and their exercise of official duties with respect to it”; (4) “communicated with the Vice President” and with “Members of Congress about the exercise of their official duties regarding the election certification”; and (5) “authorized or directed others to organize contingent slates of electors in furtherance of his attempts to convince the Vice President to exercise his official authority in a manner advocated for by President Trump.” Motion To Dismiss Indictment Based on Presidential Immunity in No. 1:23-cr-00257 (DC), ECF Doc. 74, p. 9. Trump argued that all of the indictment’s allegations fell within the core of his official duties. *Id.*, at 27. And he contended that a President has absolute immunity from criminal prosecution for actions performed within the outer perimeter of his official responsibilities, to ensure that he can undertake the especially sensitive duties of his office with bold and unhesitating action. *Id.*, at 14, 24.

The District Court denied the motion to dismiss, holding that “former Presidents do not possess absolute federal criminal immunity for any acts committed while in office.” 704 F. Supp. 3d 196, 220 (DC 2023). The District Court recognized that the President is immune from damages liability in civil cases, to protect against the chilling effect such exposure might have on the carrying out of his responsibilities. See *Nixon v. Fitzgerald*, 457 U. S. 731, 749–756 (1982). But it reasoned that “the possibility of vexatious post-Presidency litigation is much reduced in the criminal context” in light of “[t]he robust procedural safeguards attendant to federal criminal prosecutions.” 704 F. Supp. 3d, at 213–214. The District Court declined to decide whether the indicted conduct involved official acts. See *id.*, at 220.

The D. C. Circuit affirmed. 91 F. 4th 1173 (2024) (*per curiam*). Citing *Marbury v. Madison*, 1 Cranch 137 (1803), the court distinguished between two kinds of official acts: